

IN THE LABOUR COURT OF SOUTH AFRICA, CAPE TOWN
(Held at Cape Town)

Case No: _____

In the matter between:	
WILBUR WILLIAM MATTHEE	Applicant
and	
AFROCENTRIC HEALTH (RF) (PTY) LTD	First Respondent
(Registration Number: 1996/009540/07)	
and	
MEDSCHEME HOLDINGS (PTY) LTD	Second Respondent
(Registration Number: 1970/015014/07)	

AFFIDAVIT OF SERVICE
(Rule 7 of the Labour Court Rules — Email Service)

I, the undersigned,

WILBUR WILLIAM MATTHEE

Adult male, Identity Number: 890903 5151 087

Registered Nurse (SANC No. 15831886)

Applicant (Self-Represented), residing in Cape Town, Western Cape

do hereby make oath and state as follows:

1. INTRODUCTION AND CAPACITY

1.1 I am the Applicant in the above-captioned proceedings, acting in my own capacity as a self-represented litigant. I am duly authorised to make this affidavit. The facts herein are within my personal knowledge unless otherwise stated, and are true and correct to the best of my knowledge and belief.

1.2 I make this affidavit in compliance with Rule 7 of the Rules for the Conduct of Proceedings before the Labour Court (GN 1665 of 14 October 2011, as amended), to confirm the service of the Statement of Claim on the First and Second Respondents.

2. THE PROCEEDINGS

2.1 This Statement of Claim was filed with the Registrar of the Labour Court, Cape Town, on or before 8 April 2026, within the 90-day prescription period prescribed by section 191(11)(a)(i) of the Labour Relations Act 66 of 1995 ("LRA"), calculated from 9 January 2026 (date of issue of the CCMA Certificates of Non-Resolution in Cases WECT23564-25 and WECT24486-25).

2.2 The Statement of Claim is filed in respect of:

- (a) Automatically unfair constructive dismissal under sections 186(1)(e) and 187(1)(h) of the LRA (retaliation for protected disclosures);
- (b) Unfair discrimination and harassment under sections 6(1), 6(3), and 60 of the Employment Equity Act 55 of 1998 ("EEA");
- (c) Occupational detriment for making protected disclosures under sections 3 and 4 of the Protected Disclosures Act 26 of 2000 ("PDA");
- (d) Contravention of section 34(2) of the Basic Conditions of Employment Act 75 of 1997 ("BCEA") — unlawful salary deduction;
- (e) Contravention of section 42 of the BCEA — failure to provide a true Certificate of Service;
- (f) Contravention of section 5(1) of the Unemployment Insurance Contributions Act 4 of 2002; and
- (g) Misappropriation of intellectual property and copyright infringement under section 23 of the Copyright Act 98 of 1978 — CPD programme developed by the Applicant in April 2025 and implemented by the Second Respondent without attribution in October 2025.

3. AUTHORISED SERVICE ADDRESS OF RESPONDENTS

3.1 The First Respondent's authorised email address for service of documents in these proceedings is:

IR@afrocentrichealth.com

3.2 This email address was expressly stated by the Respondent's authorised representative, Mr Xolile Vincent Manyati (Senior Employee Relations Specialist, AfroCentric Health (Pty) Ltd), in the Respondent's Notice of Opposition of Condonation Application filed in CCMA Case WECT23564-25 on 10 December 2025 and signed at Johannesburg. A copy of the relevant page confirming the authorised service address is attached hereto as

ANNEXURE "A"

3.3 Service on the First Respondent at the above address constitutes valid service on the Second Respondent, Medscheme Holdings (Pty) Ltd, as the Second Respondent is a wholly-owned subsidiary of the First Respondent and shares the same employment relations infrastructure and legal representative.

4. SERVICE EFFECTED

4.1 On

8 April 2026

I dispatched by email to the address IR@afrocentrichealth.com the following documents constituting the Statement of Claim and supporting papers in the above proceedings:

- (a) Statement of Claim (Rule 6 of the Labour Court Rules) — Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd (constructive dismissal / EEA / PDA / copyright);
- (b) The complete bundle of Annexures "A" through "Z" and "AA" as listed in the Schedule of Annexures forming part of the Statement of Claim; and
- (c) This Affidavit of Service.

4.2 The email was sent from info@ethichawks.co.za. A copy of the email transmission record and delivery confirmation is attached hereto as

ANNEXURE "B"

5. CONFIRMATION OF SERVICE

5.1 Service was effected by electronic mail to the address expressly designated by the Respondent, which constitutes valid service in terms of Rule 7(2)(b) of the Labour Court Rules.

5.2 I confirm that as of the date of this affidavit, the First and Second Respondents have been duly served with the Statement of Claim and all annexures in the above proceedings, and are properly on notice of the relief sought.

5.3 The filing deadline in terms of section 191(11)(a)(i) of the LRA is 9 April 2026. Service and filing was effected on 8 April 2026, which is within the prescribed period.

6. ANNEXURES

Annexure "A": Notice of Opposition and Answering Affidavit of Mr Xolile Vincent Manyati, dated 10 December 2025 (CCMA Case WECT23564-25), confirming IR@afrocentrichealth.com as the Respondent's authorised service address.

Annexure "B": Email transmission record and delivery confirmation confirming service of the Statement of Claim on 8 April 2026.

DEPONENT'S DECLARATION

I, WILBUR WILLIAM MATTHEE, declare that the facts set out in this affidavit are within my personal knowledge and are to the best of my knowledge and belief true and correct.

WILBUR WILLIAM MATTHEE

Applicant / Deponent

info@ethichawks.co.za | Tel: 069 635 1435 / 063 378 8782

Signed at CAPE TOWN on **8 April 2026**

COMMISSIONER OF OATHS

Full Name: _____

Designation / Capacity: _____

Address: _____

I certify that on this _____ day of _____ 2026, the deponent appeared before me and acknowledged that:

- (a) he knows and understands the contents hereof;
- (b) he has no objection to taking the prescribed oath;
- (c) he considers the oath to be binding on his conscience; and
- (d) he uttered the words "I swear that the contents of this declaration are true, so help me God."

DEPONENT
WILBUR WILLIAM MATTHEE

COMMISSIONER OF OATHS

Signed at CAPE TOWN on this 8th day of APRIL 2026.
